

02:00 PM **LINE 4**

24-CIV-05754

CHRISTINE A. HALL, ET AL. VS. SHUJUAN WU, ET AL.

CHRISTINE A. HALL
SHUJUAN WU

JEFFREY R. WINDSOR
RUOCHEN LIU

Defendants Shujuan Wu and Huanhua Li's Motion for Leave to File an Amended Answer to Plaintiffs' Complaint

TENTATIVE RULING:

Defendants Shujuan Wu's and Huanhu Li's unopposed motion for leave to file an amended answer to the complaint filed by plaintiffs Christine A. and Francis C. Hall on September 16, 2024, is **GRANTED**.

Defendants shall file their amended answer within ten (10) days of notice of entry of the formal order.

A. Background

Plaintiffs brought their complaint on September 16, 2024. Defendants filed their answer on November 18, 2024, and a cross-complaint on November 25, 2024.

Defendants bring the instant motion to amend their answer pursuant to Code of Civil Procedure, section 473 on the basis of allegedly newly discovered facts and evidence which defendants contend impact the viability of plaintiff's title as well as generally in the interests of justice. Defendants submit a copy of the proposed amended answer appended to the instant motion as Exhibit 1. The motion is unopposed.

In future, the court directs the parties to submit any proposed amended pleading by way of a redlined version of the proposed revisions, rather than as a narrative included in a declaration of counsel.

B. Legal Standard

Code of Civil Procedure, section 473 permits the trial court in its discretion to allow amendments to pleadings in the furtherance of justice. "Ordinarily, courts should 'exercise liberality' in permitting amendments at any stage of the proceeding. [Citations omitted.] In particular, liberality should be displayed in allowing amendments to answers, for a defendant denied leave to amend is permanently deprived of a defense. (Citations omitted)." (*Hulsey v. Koehler* (1990) 218 Cal.App.3d 1150, 1159.) Furthermore, "[a]ny judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order." (Code Civ. Proc., § 576, see also *Eng v. Brown* (2018) 21 Cal.App.5th 675, 700.) "The rule is that courts will be

liberal in allowing an amendment to a pleading when it does not seriously impair the rights of the opposite party, and particularly an amendment to an answer. A defendant can generally set up as many defenses as he may have.” (*Gould v. Stafford* (1894) 101 Cal. 32, 34.)

C. Discussion

Here, counsel’s declaration states that defendants’ previous lawyer ran out of time when preparing the answer and did not have sufficient knowledge of all the facts. (Declaration of Ruochen Liu, filed on March 12, 2026, ¶ 2.) “Defendants’ new counsel discovered the information needed to fulfill the emptiness of the prior answer” and “defendants would be severely prejudiced and suffer irreparable harm” were the court not to allow the amendment. (*Id.*, ¶¶ 3-4.) Plaintiffs have not opposed the motion and asserted that they would be prejudiced by amendment. Given the California courts long-standing policy of liberality regarding such motions, defendants’ motion to amend the answer is GRANTED.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendants’ counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

02:00 PM **LINE 5**

24-CIV-08329

JONATHAN YUN VS. TOYOTA MOTOR SALES, U.S.A., INC.

JONATHAN YUN
TOYOTA MOTOR SALES, U.S.A., INC.

ELLIOT CONN
SEAN D. BEATTY

Plaintiff's Motion to Compel Toyota Motor Sales, U.S.A., INC's Further Responses to Requests for Production of Documents

TENTATIVE RULING:

Plaintiff Jonathan Yun's Motion to Compel Further Responses to Requests for Production of Documents (RFP) from defendant Toyota Motor Sales, U.S.A., Inc. (Toyota) is **GRANTED**.

Plaintiff seeks to compel further responses to RFPs Nos. 1-5, 7-9, 20, 21, 25-28, and 31-33. A propounding party may move to compel further responses if the propounding party deems: (1) a statement of compliance with the demand is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; and/or (3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310, subd. (a).) The motion shall set forth specific facts showing good cause justifying the discovery sought by the demand. (Code Civ. Proc., § 2031.310, subd. (b)(1).) If good cause is shown by the moving party, then the burden is on the responding party to justify any objections. (*Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.)

A. Plaintiff has Established Good Cause for Ordering Further Responses as to RFPs Nos. 1-5, 7-9, 20 and 21

These requests pertain to documents concerning discovery of evidence of the pre-sale damage to the subject vehicle and Toyota's knowledge of the damage.

For RFPs Nos. 1, 2, 5, 8, 9 and 20, Toyota's responses are not code-compliant. Toyota claims that it agreed to produce documents in part subject to its objections, but the way Toyota's responses are written do not support this claim. By stating that it will produce documents in part and then specifying the certain documents it will produce, it leaves open whether there may be other responsive, non-privileged documents. Toyota is ordered to provide code-compliant responses to these requests. (See Code Civ. Proc., § 2031.220.)

Similarly, for RFPs Nos. 3, 4, 7 and 21, Toyota's responses also are not code-compliant. Toyota appears to be claiming an inability to comply with these requests, but it fails to sufficiently state the reason regarding its inability to comply as required under Code of Civil Procedure, section 2031.230.
